

NAPCS Unionization Research — State — Charter Sector Overview

New York — PERB(NY) Jurisdiction — May 25, 2026

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Section 1: State Overview

State	New York
Labor Board	PERB(NY) — New York Public Employment Relations Board
Governing Law	NY Education Law Article 56 (Charter Schools Act); NY Civil Service Law Article 14 (Taylor Law). NY charter school employees are public employees. PERB(NY) has primary jurisdiction for certification and ULP proceedings.
Federal NLRB Jurisdiction	YES — NLRB applies to independently incorporated NY charters that contest public employer status. Post-2016 NLRB jurisdictional expansion is real but partial — most certifications remain under PERB(NY). In practice: check PERB(NY) first, NLRB second.
Right-to-Work	NOT a Right-to-Work State — New York has no right-to-work statute. (NY charter school employees are statutory public employees under Education Law Article 56 (Taylor Law jurisdiction). Right-to-work statutes apply only to private-sector NLRA employers. PERB(NY)-jurisdiction schools are public employers and not subject to right-to-work. NLRB-jurisdiction independently incorporated NY charters are private employers — no right-to-work statute applies in New York.)
For-Profit Operator Status	For-profit charter holders prohibited by state law
Card-Check Available	YES — NY Taylor Law (Civil Service Law §201.9(g)(1)) allows card-check certification without election when petitioner demonstrates majority support. NY French-American Charter School certified via card-check March 2012 (PERB ruling). UFT has used both card-check and secret ballot election depending on school.
Registry Sweep	PARTIAL — ADS scan conducted April 2026 using NLRB ADS (incorrect board for most NY charters). PERB(NY) portal search not yet completed systematically. Registry sweep should be re-run via PERB(NY) e-representation portal. — — 350 charter schools searched
Research Window	April 2026 (initial scan); May 2026 (Session E second-pass gap research)

Section 2: Charter Sector Landscape

Total charter schools in New York: 350 (Charter School Registry v133). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Organized Charter Schools in New York (NAPCS scope)	21	50.0%	Active UNIONIZED schools within the 42-school NAPCS baseline. INDEPENDENT (21). Denominator: 42 NAPCS-scope schools.
UFT Local 2 — NYC Charter Schools	18	42.9%	UFT-affiliated schools confirmed on UFT dues list (2025) or via PERB(NY) certification. Includes conversion charters (where UFT representation was automatic under Education Law) and independently organized schools.
Non-UFT Unions (Upstate NY)	3	7.1%	King Center United Professionals / NYSUT / AFT (Buffalo, NLRB certified October 2024); Global Concepts CS

			(NYSUT local 7828, Buffalo); Riverhead CS (ESPA/NYSUT local).
NAPCS Baseline Total	42	100%	Source: NAPCS 2023-24 school directory. NY charter universe is approximately 360 schools (NCES/ELSI 2024-25); NAPCS scope covers 42 schools.

Charter Sector Enrollment

Total Charter Enrollment	181,966 students — 7.2% of state K–12 enrollment (2,527,258 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	102,350 students in network-affiliated schools — 56.2% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Success Academy	CMO	36	38	—	20,327
Uncommon Schools (NYC)	CMO	22	23	1	13,078
KIPP NYC	CMO	12	12	1	11,297
Achievement First	CMO	11	11	—	8,039
Icahn Charter Schools	CMO	7	7	—	2,332
New Visions for Public Schools	CMO	7	8	3	2,318
Bronx Charter School for Excellence	CMO	5	5	—	2,611
Brilla Schools / Seton Education Partners	CMO	4	4	—	2,050
Brooklyn Prospect	CMO	4	4	1	2,656
Family Life Academy Charter Schools	CMO	4	4	—	1,872
South Bronx Classical	CMO	4	4	—	1,673
Zeta Charter Schools	CMO	4	4	—	2,846
Amber Charter Schools	CMO	3	3	2	1,187

DREAM Charter School	CMO	3	3	—	2,221
Explore Schools	CMO	3	3	—	1,698
Harlem Village Academies	CMO	3	3	—	1,189
Our World Neighborhood Charter Schools	CMO	3	3	—	1,402
Rochester Prep	CMO	3	3	—	3,058
AECI Charter High School	CMO	2	2	1	899
Bed-Stuy New Beginnings	CMO	2	2	—	807
Brighter Choice Foundation	CMO	2	2	—	556
Bronx CS for Better Learning	CMO	2	2	—	955
Buffalo Academy of Science	CMO	2	2	—	1,603
Capital Preparatory Schools	CMO	2	2	—	673
Central Queens Academy	CMO	2	2	—	1,064
Citizenship and Science Academy	CMO	2	2	—	1,125
Democracy Prep	CMO	2	3	—	1,483
East Harlem Scholars Academies	CMO	2	2	—	1,268
Elmwood Village Charter Schools	CMO	2	2	—	845
Genesee Community Charter School	CMO	2	2	—	391
Green Tech/Henry Johnson (Albany)	CMO	2	2	—	796
Growing Up Green Charter School	CMO	2	2	1	1,502
HCZ Promise Academy	CMO	2	2	—	2,229
Hebrew Language Academy	CMO	2	2	—	949
Manhattan Charter Schools	CMO	2	2	—	257
NYC Autism Charter Schools	CMO	2	2	—	74
Renaissance Charter Schools (Queens)	CMO	2	2	1	1,487
Storefront Academy	CMO	2	2	—	356
Urban Dove	CMO	2	4	—	574
American Dream Charter School	CMO	1	1	—	603
TOTAL — All CMO/EMO Schools in New York		181		11 organized — 5,439 students in organized network schools (3.0% of total charter enrollment)	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 25, 2026.

1: Legal & Jurisdictional Framework

NY Education Law Article 56 (Charter Schools Act); NY Civil Service Law Article 14 (Taylor Law). NY charter school employees are public employees. PERB(NY) has primary jurisdiction for certification and ULP proceedings. New York is not a right-to-work state (New York has no right-to-work statute.). Charter schools in New York are subject to NLRB jurisdiction as private employers (PERB(NY)). Card-check recognition is available under NY Taylor Law (Civil Service Law §201.9(g)(1)) allows card-check certification without election when petitioner demonstrates majority support. NY French-American Charter School certified via card-check March 2012 (PERB ruling). UFT has used both card-check and secret ballot election depending on school..

2: Charter Sector Structure

New York operates 350 open-enrollment charter schools, enrolling approximately 181,966 students. 40 charter management organizations and education management organizations operate in New York. The largest networks by campus count are Success Academy (36 campuses in state), Uncommon Schools (NYC) (22 campuses in state), KIPP NYC (12 campuses in state). Approximately 169 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

NY charter union press coverage is concentrated in two periods: (1) the 2007-2012 UFT organizing campaign (Chalkbeat NY/Gotham Schools, NY Daily News, NY Sun); (2) the 2024-2025 King Center crisis (Spectrum News Buffalo, Buffalo Criterion, Brown Daily Herald). Chalkbeat NY is the definitive source for NYC charter sector labor coverage. Key archived articles: Chalkbeat July 22 2010 (Merrick Academy mass firings, UFT PERB complaint); Chalkbeat Oct 14 2011 (5 charter schools without first contracts including Merrick); Chalkbeat Jan 2010 (UFT organizing campaign overview). For upstate: Spectrum News Buffalo (King Center governance crisis Nov 2025); RI Current (Highlander strike Nov 2025).

Section 6: Contract & CBA Access Registry

PERB(NY) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Amber Charter School (East Harlem)	UFT Local 2	CONFIRMED ACTIVE September 1, 2009 (first CBA). Current renewal status unknown — PERB FOIL recommended.	N/A
NY French-American Charter School	UFT Local 2	CERTIFIED — first contract status unknown Certified March 2012 via PERB card-check. First contract negotiation status not confirmed — PERB records request recommended.	N/A
King Center Charter School (Buffalo)	King Center United Professionals / NYSUT / AFT /	PRE-FIRST-CONTRACT Certified October 1, 2024 (NLRB case 03-RC-351776). First contract	N/A

	NEA	bargaining ongoing amid institutional crisis.	
Amber Inwood Campus (Discovery)	UFT Local 2	CERTIFIED — first contract status unknown Certified May 2022 (NLRB case 02-RC-290431, 7-0 unanimous vote).	N/A